



REGIONAL  
IMMIGRATION  
ASSISTANCE  
CENTERS

# CRIMINAL CASE INTAKE FORM

## STEP 1: DOCUMENTS WE NEED IN EVERY CASE

### Fingerprint RAP Sheet

(Repository inquiries are generally insufficient)

☐ Enclosed ☐ Sent Previously

### All accusatory instruments

(Must include supporting affidavits/police reports)

☐ Enclosed ☐ Sent Previously

### All immigration documents

E.g. green card, work permit, USCIS receipt or passport visa

☐ Enclosed ☐ Sent Previously

If any documents are unavailable, please explain (we may be able to help)

## STEP 2: CASE & CLIENT INFORMATION

### ATTORNEY INFORMATION

Attorney Name: \_\_\_\_\_

Email: \_\_\_\_\_

Affiliation: \_\_\_\_\_

Tel: \_\_\_\_\_

(Name of PD, ACP, etc.)

### CASE INFO

Client Name: \_\_\_\_\_

DoB: \_\_\_\_\_

Co-Defendants: \_\_\_\_\_

Complainant/Victims: \_\_\_\_\_

Client's Custody Status ☐ ROR ☐ Bail-Released ☐ Bail-Detained ☐ ICE Detainer / Involvement

Existing Offer and / or  
Likely Disposition

e.g. please note if the ADA will only accept a certain charge weight/type, an OOP or SORA

(Include your best guess)

### CLIENT CRIMINAL HISTORY

Does the fingerprint RAP sheet  
include **ALL** arrests & dispositions?

☐ Yes (Including Out Of State) | ☐ No | ☐ No Fingerprint Yet

(If No, please detail the client's additional criminal history)

Details: \_\_\_\_\_

Check any of the following which may apply to your client / the underlying incident - whether or not referenced in the charges

|                                                                           |                                                                                              |                                                                 |                                                       |                                                           |                                                        |
|---------------------------------------------------------------------------|----------------------------------------------------------------------------------------------|-----------------------------------------------------------------|-------------------------------------------------------|-----------------------------------------------------------|--------------------------------------------------------|
| <input type="checkbox"/> Domestic relation<br>to victim                   | Drug Use: (inc. marijuana)<br><input type="checkbox"/> Past <input type="checkbox"/> Current | <input type="checkbox"/> Mental health<br>problems              | <input type="checkbox"/> Alcohol<br>Problem           | <input type="checkbox"/> Child victim                     | None of<br>These<br>Apply:<br><input type="checkbox"/> |
| <input type="checkbox"/> Order of Protection<br>/ TOP <u>now</u> in place | <input type="checkbox"/> Possible <u>Violation</u> of an<br><u>existing</u> OP / TOP Alleged | <input type="checkbox"/> \$10k+ loss<br>(for theft/fraud cases) | <input type="checkbox"/> Possible Gang<br>involvement | <input type="checkbox"/> Child present<br>during incident |                                                        |

Details: \_\_\_\_\_

## CLIENT INFORMATION & IMMIGRATION HISTORY

*Provide as much detail as possible for all fields. If your client does not know the answer, please say so:*

Client's level of English: ☐ Read & Write ☐ Spoken Only ☐ Interpretation Needed Language: \_\_\_\_\_

Country of Birth: \_\_\_\_\_ USCIS / Alien Number (9 digits): \_\_\_\_\_  
*Note: This is not the same as a 10 digit SSN*

**Initial Entry** To U.S.: Status: \_\_\_\_\_ Date: \_\_\_\_\_  
*e.g. Illegal entry | Refugee | Green card | F-1 student visa (For work permits, we need the code - e.g. C08 or A12)*

**Current** Immigration Status: Status: \_\_\_\_\_ Date: \_\_\_\_\_  
*e.g. Illegal entry | Refugee | Green card | F-1 student visa (For work permits, we need the code - e.g. C08 or A12)*

Pending / Imminent Immigration Application(s)? ☐ N ☐ Y: \_\_\_\_\_  
*Name of form or description (e.g. N400, adjustment of status, I-485)*

**Please check if your client has any immediate family members who are either lawful permanent residents or U.S. citizens**

| <u>Children</u>                                                                          | <u>Spouse</u><br><i>(legal marriage, not common law)</i>                | <u>Parents</u>                      | <u>None of These Apply:</u> |
|------------------------------------------------------------------------------------------|-------------------------------------------------------------------------|-------------------------------------|-----------------------------|
| <b>Over 21:</b> <input type="checkbox"/> Green Card <input type="checkbox"/> US Citizen  |                                                                         | <input type="checkbox"/> Green Card | <input type="checkbox"/>    |
| <b>Under 21:</b> <input type="checkbox"/> Green Card <input type="checkbox"/> US Citizen | <input type="checkbox"/> Green Card <input type="checkbox"/> US Citizen | <input type="checkbox"/> US Citizen |                             |

**Please check all of the following which may apply to your client:**

|                                                                |                                                                    |                                                                        |                                                                       |                                                         |
|----------------------------------------------------------------|--------------------------------------------------------------------|------------------------------------------------------------------------|-----------------------------------------------------------------------|---------------------------------------------------------|
| <input type="checkbox"/> Is in immigration court proceedings   | <input type="checkbox"/> Immigration/ICE may be aware of client    | <input type="checkbox"/> Has an immigration attorney (provide details) | <input type="checkbox"/> Willing to cooperate with law enforcement    | <b>None of These Apply:</b><br><input type="checkbox"/> |
| <input type="checkbox"/> Previously ordered removed / deported | <input type="checkbox"/> Has ever been arrested by Immigration/ICE | <input type="checkbox"/> Fears persecution or torture if deported      | <input type="checkbox"/> Needs to travel before this case is resolved |                                                         |
| <input type="checkbox"/> May be victim of domestic violence    | <input type="checkbox"/> May be victim of trafficking              | <input type="checkbox"/> Has been the victim of a serious crime        | <input type="checkbox"/> Does not care about being deported           |                                                         |

Details: \_\_\_\_\_  
 \_\_\_\_\_  
 \_\_\_\_\_

### STEP 3: BEFORE YOU RECEIVE RIAC ADVICE:

- If your client is subject to an **order of protection**, immediately review the [RIAC Advisory on Domestic OPs](#).
- If there is an ICE detainer / **your client is likely to be arrested by ICE** (whether in Court, upon release from Jail or at home) immediately review the RIAC Advisory on steps to take.
- DO NOT **accept any plea** OR **enter any diversion program** (even a seemingly amazing one, including an up-front plea which will be vacated). See the [RIAC advisory on diversion and up front pleas](#).
- DO NOT advise your client **accept an ACD** (unless you have first reviewed [the RIAC ACD advisory](#) with your client).
- DO NOT **use a court interpreter outside of Court: that conversation is not privileged!** You have access to telephonic interpretation. See, the [RIAC advisory on interpretation](#) / contact RIAC directly if you need assistance).
- DO NOT **ask your client to contact RIAC directly** – we are your legal expert, not your client's immigration attorney.
- **Advise your client of their right TO REFUSE TO SPEAK WITH ICE, even just to confirm their name.** See, "Know Your Rights with ICE" flyers in [English](#) and [Spanish](#) (contact us for additional languages).